

## **Migrants, Refugees, and Asylum Seekers: Legal protections and humanitarian responses.**

**Introduction:** At the end of First World War, some attempts on modest level were made through the Treaty of Versailles to promote and universalise human rights but it met with no success. Since the judicial conscience of the civilised world was very much in the favour of safeguarding the rights of individuals against its violation by states, it was consistently realised that the rights of individuals must be universalised so that it may be guarded against its violation by one's own state. Influenced by such desires the Institute of International Law initiated measures to study and formulate the human rights provisions. This institute of International Law was a private organisation whose members were elected from the authorities on International Law in Europe, America, and Asia. Its chief aim was "to extend to the entire world International recognition of the rights of man." Accordingly a proclamation of the rights of man was issued by it in 1929. So, in order to eliminate widespread discrimination against the migrant workers, refugees and members of their families and to establish a set of binding standards for the treatment and human rights and work to end their exploitation, conventions such as the International Convention on the Protection of Rights of All Migrants Workers and Members of Their families, adopted by the General Assembly on December 18, 1990<sup>1</sup> and The Convention Relating to the Status of Refugees of 1951 were developed. To recognise the right of every individual to seek Asylum, Article 14 of the UDHR, 1948 lays down that "everyone has a right to seek and enjoy in other countries asylum from prosecution". However, it may be noted that the Declaration simply recognises the right of asylum, it does not grant the right to receive asylum.

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1. General Assembly Resolution 45/158, dated December 18, 1990.

**Meaning of Human Rights and their Fundamental Impact:** Human beings are rational beings,. They by virtue of their being human possess certain basic and inalienable rights which are commonly known as human rights. Since these rights belong to them because of their very existence, they become operative with their birth. Human rights, being birth right, are, therefore, inherent in all the individuals irrespective of their caste, creed, religion, sex, and nationality. These rights are essential for all the individuals as they are consonant with their freedom and dignity and are conducive to physical, moral, social and spiritual welfare. These rights provide suitable conditions for the material and moral uplift of the people. So, because of their immense significance to human beings, human rights are also sometimes referred to fundamental rights, basic rights, inherent rights, natural rights and birth rights.

**Definition and Rights of Migrant Workers:** A migrant worker has been defined under Article 2 of the Convention on the Protection of Rights of All Migrants Workers and Members of Their families as a person who is to be engaged or has been engaged in a remunerated activity in a State of which he or she is not a national. The Expression ‘members of the family’ has also been defined under Article 4 as persons married to migrant workers or having with them a relationship that, according to applicable law, produces effects equivalent to marriage, as well as their dependent children and other dependent persons who are recognised as members of the family by applicable bilateral or multilateral agreements between the States concerned. Their rights are include:

- They shall be free to leave any State, including their State of origin, without restrictions<sup>1</sup> and the right to enter and remain in their State of origin<sup>2</sup> ;

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1. Article 8, Para 1

2. Article 8, Para 2

- ♦ Protection of the right to life under the law<sup>3</sup> ;
- ♦ Prevention from subjection to torture or to cruel, inhuman or degrading treatment or punishment<sup>4</sup> ;
- ♦ Forbidding of slavery or servitude<sup>5</sup> ;
- ♦ Forbidding or forced or compulsory labour<sup>6</sup> ;
- ♦ Right to freedom of thought, conscience and religion<sup>7</sup> ;
- ♦ Right to hold opinions without interference<sup>8</sup> and right to freedom of expression<sup>9</sup> ;
- ♦ Protection from arbitrary or unlawful interference with his or her privacy, family, home, correspondence or other communications<sup>10</sup> ;
- ♦ Right to liberty and security of persons<sup>11</sup> ;
- ♦ Protection from arbitrary arrest and detention<sup>12</sup>.

### **Legal Protections & Humanitarian Responses to the Migrants:**

- a) **Implementation Procedure:** The Convention provided a machinery for the implementation of the rights of a migrant worker and members of his family. A Committee on the Protection of Rights of All Migrant Workers and Members of Their Families was set up to monitor State Parties compliance with their obligations under the Convention. Initially, the Committee had ten members.<sup>13</sup> Four more experts were included after the convention came into force.
- b) **Reporting System:** State Parties to the Convention must report to the Committee on legislative, judicial, administrative and other measures they have taken according to the provisions of the Convention within a year after its entry

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3. Article 9, 4. Article 10,

5. Article 11, Para 1, 6. Article 11, Para 2,

7. Article 12, 8. Article 13, Para 1,

9. Article 13, Para 2, 10. Article 14; 11. Article 16, Para 1, 12. Article 16, Para 4,

13. Article 72(1)(a). The Committee shall have four more experts after its entry into force [Article 72(1)(b)]

into force in that country, and every five years thereafter and whenever the Committee so requests. Report shall indicate factors and difficulties, if any, affecting the implementation of the Convention and shall include information on the characteristics of migration flows in which the State party concerned is involved.

c) **Inter-State Communications System:** It has been recognised under Article 76 of the Convention which lays down that a State Party may at any time declare that it recognises the Competence of the Committee to receive and consider communications to the effect that a State Party claims that another State party is not fulfilling its obligations under the Convention.

**Definition of Refugees:** Refugees are ‘migrants’ in the broader sense of the term; yet they continue to be a distinct category of people. They are referred to those persons who Leave their States in which they have permanent residents to escape persecution or military action. The Convention Relating to the status of refugees of 1951 defines refugees under Article 1 as under:

“Any person who owing to well founded fear of being persecuted for reasons of race, religion, nationality, membership of a particular social group or politicoal opinion, is outside the country, or who not having a nationality and being outside the country of his former habitual residence as a result of such events, is unable or, owing to such fear; is unwilling to return to it.”

However, on certain occassions a person fleeing on economic reasons may also be termed as refugee if his economic considerations are interwoven with the political considerations of his State. The politico-econimic system of a State may result the fleeing of a person from his own State. For instance, if a certain ethnic minority in a State is denied trading and economic rights as a result of goverment’s policy of expelling an ethnic group (for instanccce, Asians in Uganda), and they flee to other

States as they are not left with an appropriate means of earning a living may be considered politico-economic migrants. In such a case, the policy, though economic, is done for an overtly political motive and is directed only at the members of a certain ethnic group.<sup>1</sup>

### **Legal protections for the Refugees:**

- **UNRRA-** The United Nations Relief and Rehabilitation Administration which was established on November 9, 1943 by a 44-nation agreement of which primary objectives included the relief, maintenance, rehabilitation and repatriation of the United Nations nationals who had been displaced as a result of war.
- **IRO-** A preparatory Commission for International Refugee Organization, 1947 was established to take over the functions and activities previously exercised by UNRRA on behalf of refugees and displaced persons. It repatriated approximately 73,000 to their former homelands and provided some kind of assistance to more than 1,600,000 persons.

### **Humanitarian responses:**

- i. The Convention relating to The Status of Refugees, 1951 stated that the Contracting States shall provide minimum rights to refugees, such as right to work, right to education, and social security, freedom of religion and access to courts without discrimination on the basis of race, religion or country of origin ;
- ii. The personal status of a refugee shall be governed by the law of the country of his domicile by the law of the country of his residence.<sup>2</sup>
- iii. The contracting States shall accord to a refugee treatment as favourable as

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1. Animesh Ghosal and Thomas M. Crowley, 'Refugees and Immigrants : A Human Rights Dilemma' in Human Rights and World Community edited by Richard Pierre Claude and Burns H. Weston, p. 99.

2. Article 12 of the Convention of 1951.

possible and, in any event, not less favourable than that accorded to aliens generally in the same circumstances, as regards the acquisition of movable and immovable property and other rights pertaining thereto, and to leases and other contracts relating to movable and immovable property.

iv. The Contracting States shall not impose penalties on those refugees who have illegally entered into their territories without authorization from a territory where their life or freedom was threatened provided they present themselves without delay to the authorities and show good cause for their illegal entry or presence.

**Asylum Seekers, their Legal protections and humanitarian responses:**

- ♦ In 1967, the United Nation's Declaration on Territorial Asylum was unanimously adopted by the General Assembly. Among its most important provisions, it called on governments to refrain from measures such as rejection at the frontier of persons seeking asylum. Thus, although everyone has a right to seek asylum yet there is no corresponding duty of States to grant asylum. According to Starke, "The only international legal right involved is that of the State of refugee itself to grant asylum."
- ♦ Article 14 of the UDHR, 1948 lays down that, "everyone has a right to seek and enjoy in other country's asylum from prosecution. According to Oppenheim, "The so-called right of asylum is probably nothing but the competence of every State to allow a prosecutor alien to enter and to nothing but the competence of every State to allow a prosecuted alien to enter and to remain on, its territory under its protection. Such fugitive alien enjoys the hospitality of the State which grants him asylum; but it might be necessary to place him under surveillance, or even to intern him at some place to make his entry subject to condition.

**Conclusion:** In a world marked by increasing globalization, migration, and displacement, it is imperative for nations to uphold their legal obligations and humanitarian duties towards migrants, refugees, and asylum seekers. Legal

protections, enshrined in international conventions such as the 1951 Refugee Convention and regional agreements, serve as crucial frameworks for safeguarding the rights of refugees and asylum seekers. These instruments establish the principles of non-refoulement, ensuring that individuals cannot be returned to countries where they face persecution or harm. Moreover, they outline obligations for host countries to provide access to essential services and fair asylum procedures. Humanitarian responses complement legal frameworks by providing immediate assistance and long-term support to those in need. Organizations like the UNHCR, IOM, and NGOs play pivotal roles in delivering aid, advocating for rights, and addressing the root causes of displacement. Their efforts not only alleviate suffering but also contribute to building more inclusive and resilient societies.

Overall, ensuring the legal protection and humanitarian assistance for migrants, refugees, and asylum seekers is essential for upholding their rights and dignity and addressing the challenges of forced displacement on a global scale.

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For successfully completing this article, I have taken help from the followings:

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## **CASE STUDIES**

### **1. Noor Fatima :**

- She barely manages to meet basic requirements as last supply of ration was given by UNHRC on Ramzan in April 2022.
- Local NGO help in getting free health treatment. Nearby hospital, AL-Shifa send their ambulance every week for routine check-ups.

### **2. Muhammad Abdullah :**

- He is partially blind.
- Local NGO helps him in getting treatment from AIIMS, New Delhi.
- Unable to work due to his eyesight problem.
- He would like to go back to their homeland given the space is safe for their



loved ones.

3. **Noor Al-Amin :**

- They fled to India, fearing persecution in their country.
  - His two children go to nearby government school.
  - They use makeshift toilets.
  - Works as a garbage segregator.
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